

Court No. - 40

Case :- WRIT - C No. - 23894 of 2023

Petitioner :- Amir Khan

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rajesh Kumar Tripathi

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

Advocates are abstaining from judicial work.

Put up as fresh on 25.09.2023.

Order Date :- 12.9.2023

A. Pandey

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1. Heard learned counsel for the petitioner; Sri Ambrish Shukla, learned Additional Chief Standing Counsel for the State-respondent no. 1 and Sri Rakesh Kumar Mishra holding brief of Sri N.K.Tiwari, learned counsel for the respondent no. 2.

2. The petitioner being Trustee/Mutawalli is disputing the electricity bill.

3. Sri Mishra, learned counsel for the contesting-respondent raised an objection that the matter relates to disputed electricity bill. For redressal of his grievance, the petitioner has got efficacious alternative remedy under Clause 6.5 of the Electricity Supply Code 2005 and as such the present writ petition is liable to be dismissed on the ground of statutory alternative remedy.

4. Once an objection is being raised, we have proceeded to examine the record in question and we are of the considered opinion once the efficacious alternative remedy is available to the petitioner, there is no reason or occasion to bypass the statutory forum and the writ petition is liable to be dismissed on the ground of statutory alternative remedy.

5. In the facts and circumstances, no useful purpose would be served in keeping the writ petition pending and with the consent of the parties, the writ petition is disposed of finally with the direction that in case any such application is being preferred by the petitioner within two weeks from today before the second respondent, definitely, the same would be looked into, examined and redressed strictly in accordance with law within six weeks thereafter.

Order Date :- 5.10.2023

A.K.Srivastava